

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUPP032964: M J vs MOORPARK UNIFIED SCHOOL DISTRICT

07/23/2026 in Department 21

**Motion to Compel Plaintiff's Mother J.J.'s Compliance with Deposition Subpoena and
Request for Sanctions**

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes "SUBMISSION ON TENTATIVE", Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court's tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant's Motion to Compel Plaintiff's Mother J.J.'s Compliance with Deposition Subpoena and Request for Monetary Sanctions in the Amount of \$1,250 (*Opposed*)

Tentative Ruling:

Defendant Moorpark Unified School District's Motion to Compel Nonparty J.J.'s Compliance with Deposition Subpoena and Request for Monetary Sanctions is GRANTED in part and DENIED in part.

Defendant's motion to compel is GRANTED. J.J. is ORDERED to appear for deposition within 10 days of this order, or on another date promptly agreed upon by Defendant and J.J., and to comply with the document-production requirements of the subpoena, subject to any valid privilege or other applicable protection.

Defendant's request for monetary sanctions is DENIED.

Discussion:

Preliminary Matters

The motion is timely and properly noticed. J.J. failed to appear for her deposition on May 21, 2026, and Defendant filed the motion on June 2, 2026. J.J. was personally served with the moving papers on June 26, 2026. The July 23, 2026 hearing is well before the discovery-motion cutoff applicable to the December 8, 2026 trial date.

Because J.J. is a nonparty who failed to appear altogether, CCP § 1987.1 provides the more directly applicable authority. CCP § 1987.1 does not impose the 60-day deadline contained in CCP § 2025.480(b) or an express meet-and-confer requirement. In any event, Defendant filed the motion only 12 days after J.J.'s nonappearance.

Motion to Compel

The motion to compel is GRANTED.

A nonparty's attendance and testimony at deposition is obtained by deposition subpoena. (CCP §§ 2020.010(b), 2025.280(b).) CCP § 1987.1 expressly authorizes the Court to direct compliance with a subpoena requiring attendance or production at a deposition.

J.J. is Plaintiff's mother, former guardian ad litem, and a percipient witness. The record indicates she has potentially relevant information concerning the alleged September 2023 incident, prior incidents involving Plaintiff on the school bus, reports made to Defendant before and after the incident, and Plaintiff's claimed injuries and emotional distress. Defendant personally served J.J. with a deposition subpoena requiring her appearance on May 21, 2026. J.J. failed to appear and has neither opposed the present motion nor offered any justification for her nonappearance.

Accordingly, J.J. is ORDERED to appear for deposition within 10 days of this order, or on another date promptly agreed upon by Defendant and J.J., and to comply with the document-production requirements of the subpoena, subject to any valid privilege or other applicable protection.

Monetary Sanctions

Defendant's request for \$1,250 in monetary sanctions against J.J. is DENIED.

To begin, the notice of motion does not specify the name of the person or persons to whom the sanctions are alleged against, as is required pursuant to CCP § 2023.040. Stating sanctions are requested against Plaintiff's mother in the conclusion of the points and authorities is insufficient. Additionally, CCP § 2025.450(g)(1), which mandates monetary sanctions when a motion to compel attendance is granted, does not apply here because CCP § 2025.450(a) is limited to parties and specified persons affiliated with a party. J.J. is a nonparty witness.

A subpoenaed nonparty's failure to attend is instead specifically addressed by CCP §§ 2025.440(b) and 2020.240. These provisions authorize contempt and subject the deponent to the forfeiture and damages provided by section 1992.

Although CCP §§ 2023.010 and 2023.030 generally authorize sanctions for misuse of discovery, these general provisions do not independently expand the remedies provided by the more specific statutes governing the particular discovery misconduct at issue. (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 72-74.) Here, J.J.'s alleged misconduct is her failure to appear pursuant to a deposition subpoena, conduct specifically addressed by CCP §§ 2025.440(b) and 2020.240.

CCP § 1987.2(a) also does not provide a basis for the requested attorney's fees. That provision permits an award of expenses incurred in making or opposing a motion under CCP § 1987.1 where the motion was made or opposed in bad faith or without substantial justification, or where a requirement of the subpoena was oppressive. J.J. did not oppose the motion, and the circumstances specified in CCP § 1987.2(a) have not otherwise been established.

Finally, although CCP § 2020.240 makes a noncomplying deponent subject to a \$500 forfeiture and damages under CCP § 1992, those amounts are not recoverable by motion in this proceeding. CCP § 1992 requires their recovery in an independent civil action. (*New York Times Co. v. Superior Court* (1990) 51 Cal.3d 453, 464.)

Accordingly, Defendant's motion is GRANTED as to compelling J.J.'s compliance with the deposition subpoena and DENIED as to the request for \$1,250 in monetary sanctions.

Counsel for moving party to give notice.